

2:00 PM

LINE: 3

24-CIV-03510

ERIK DAVIS VS. ESTELLA WEEMS, ET AL

ERIK DAVIS
ESTELLA WEEMS

ROBERT G MACK
JASON P TORTORICI

DEFENDANT ESTELLA WEEMS AND CROSS DEFENDANT THE WEEMS-YOUNG GROUP'S MOTION TO APPOINT NEUTRAL GUARDIAN AD LITEM FOR CROSS-DEFENDANT/CROSS-COMPLAINANT NUNILA ACIO

TENTATIVE RULING:

In light of the Court's previous ruling granting Janet Acio's Motion for Appointment of Guardian Ad Litem, The competing motion by Estella Weems and The Weems-Young Group, Inc. to appoint an independent guardian ad litem is **DENIED WITHOUT PREJUDICE** to a properly supported application based on a demonstrated conflict or later change of circumstances.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 4

24-CIV-04619

CAVA HOMES, LLC VS. MONIQUE DIAS, ET AL

CAVA HOMES, LLC
MONIQUE DIAS

LYNDSEY C HEATON
PAUL J. SMOOT

PLAINTIFF CAVA HOMES LLC’S MOTION FOR AN ORDER TO SHOW CAUSE AS TO WHY CONTEMPT SANCTIONS SHOULD NOT ISSUE AGAINST DEFENDANTS

TENTATIVE RULING:

THE PARTIES ARE TO APPEAR.

For the reasons stated below, Plaintiff Cava Homes, LLC’s application for issuance of an order to show cause regarding indirect contempt of the November 13, 2025 inspection order is **GRANTED** solely for the purpose of setting a contempt hearing. No finding that any defendant committed contempt, acted willfully, or lacked a lawful excuse is made at this stage. The Court will issue a separate signed order to show cause identifying each respondent, the specific acts or omissions charged, the underlying order alleged to have been violated, and the date, time, and location of the hearing.

BACKGROUND

This dispute concerns two neighboring properties in Hillsborough. In 2019, Plaintiff purchased real property located at 50 Knightwood in Hillsborough (“50 Knightwood”). The property contains a single-family residence and is situated on a hill. Defendant Monique Dias (“Dias”) resides at 60 Knightwood in Hillsborough (“60 Knightwood”), which is owned by Dias’s mother, Defendant Ann Javer, through the Ann Javer Irrevocable Trust. Dias and Defendant Alexandra Fee serve as trustees of the trust. 60 Knightwood is located downslope from 50 Knightwood.

After purchasing the property, Plaintiff submitted plans to the Town of Hillsborough to renovate 50 Knightwood by constructing a two-story residence. The Complaint alleges that Dias has since repeatedly complained to the Town and Plaintiff about the renovation plans and construction, including allegations that Plaintiff caused water to flow onto 60 Knightwood. Plaintiff further alleges that, after a certificate of occupancy was issued for 50 Knightwood, Dias began interfering with efforts to sell the property, resulting in the loss of prospective sales.

GROUND FOR ISSUANCE

The November 13, 2025 order authorizes specified drilling and monitoring at 60 Knightwood subject to notice and permitting conditions. The declarations of John Van Loben Sels and Faybishenko identify alleged refusals of access following attempted scheduling and describe the respondents’ notice of the order. Taken as charging